

CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM CR-07
FILED BY THE PARTIES
REV. 08/2026

IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR CLEARWATER COUNTY

PLEA AGREEMENT AND WAIVER OF RIGHTS

Negotiated disposition - defendant must complete the waiver personally

THE STATE OF FLORIDA		CASE NUMBER (UCN)	
THE STATE OF FLORIDA			
VS.	DEFENDANT	Format: 26-CF-000123 (YY - TYPE - NUMBER)	
		DIVISION	JUDGE / HEARING OFFICER
Full name of party		CF felony MM misdem. CT crim. traffic TR traffic CC civil SC small claims	

HOW TO USE THIS FORM

This form ends a case without a trial. The defendant must read and initial every waiver line - a judge will reject the plea if the waivers are blank. The judge is never bound by the recommended sentence unless Part V says the plea is binding.

PART I - PARTIES

DEFENDANT FULL NAME	USERNAME	CASE NUMBER
ASSISTANT STATE ATTORNEY	DEFENSE COUNSEL	BAR NO.

PART II - COUNTS AND PLEAS

Plea types: GUILTY / NO CONTEST / DISMISSED

COUNT	ORIGINAL CHARGE	PLEA TO (CHARGE)	PLEA TYPE	DISPOSITION

PART III - NATURE OF THE PLEA

☐	GUILTY I admit that I committed the offense(s) listed above.
☐	NO CONTEST (NOLO CONTENDERE) I do not admit guilt but I do not contest the charge. The Court may treat this as a conviction for sentencing.
☐	OPEN PLEA TO THE COURT There is no agreement with the State. I accept whatever sentence the Court imposes within the lawful maximum.

PART IV - WAIVER OF RIGHTS

By entering this plea I give up the following rights. I check each box to show that I understand it and that I am giving it up freely.

RIGHTS WAIVED - CHECK EACH TO CONFIRM YOU UNDERSTAND

- ☐ My right to a trial by jury
- ☐ My right to make the State prove guilt beyond a reasonable doubt
- ☐ My right to see and cross-examine the witnesses against me
- ☐ My right to subpoena witnesses in my defense
- ☐ My right to remain silent and not testify
- ☐ My right to appeal, except as to an illegal sentence
- ☐ My right to file pretrial motions, including a motion to suppress
- ☐ My right to be presumed innocent

DEFENDANT CERTIFICATION

- ☐ I am not under the influence of drugs, alcohol, or medication right now
- ☐ No one has threatened or forced me to enter this plea
- ☐ No promises have been made to me other than what is written in this document
- ☐ I have had enough time to talk with my attorney about this plea
- ☐ I am satisfied with the advice and representation of my attorney
- ☐ I understand the maximum penalty for each charge
- ☐ I understand this may affect my employment, licensing, or immigration status
- ☐ I am entering this plea freely and voluntarily

PART V - AGREED SENTENCE RECOMMENDATION

JAIL / PRISON TIME	CREDIT FOR TIME SERVED	PROBATION TERM	TOTAL FINES AND COSTS
RESTITUTION AMOUNT	COMMUNITY SERVICE HOURS	LICENSE IMPACT	PLEA IS BINDING ON COURT

ADDITIONAL TERMS OF THE AGREEMENT

DIVERSION, TREATMENT, NO-CONTACT ORDERS, COOPERATION TERMS

PART VI - SIGNATURES

DEFENDANT I have read and understood this entire document		DEFENSE COUNSEL I have explained this plea to my client	
PRINTED NAME	DATE	PRINTED NAME	DATE

ASSISTANT STATE ATTORNEY
The State agrees to these terms

PRINTED NAME

DATE

JUDGE
Plea accepted / rejected - see below

PRINTED NAME

DATE

PART VII - RULING OF THE COURT

☐ **PLEA ACCEPTED**
The Court finds the plea is knowing, voluntary, and supported by a factual basis.

☐ **PLEA ACCEPTED - SENTENCE DEFERRED**
Sentencing set for the date entered below.

☐ **PLEA REJECTED**
The Court rejects the agreement. The defendant may withdraw the plea.

SENTENCING DATE

TIME

COURTROOM

PSI ORDERED